

Sarfaraj Husain v. State of U.P. — pending 6.8(b) objection to s.126 notice

High Court of Judicature at Allahabad · Division Bench · 6 January 2022 · WRIT - C No. - 35445 of 2021 · **Writ disposed; assessing officer to decide pending 6.8(b) objection.**

HEADNOTE

Where an objection to a provisional theft-assessment notice under Section 126(3) of the Electricity Act, 2003 read with clause 6.8(b) of the Electricity Supply Code, 2005 remained pending after an earlier relegation, the High Court disposed of the later writ by directing a fresh objection, disclosure of adverse material, hearing and a reasoned order in accordance with law, with a short stay of coercive recovery.

FACTUAL SUMMARY

The petitioner received a provisional assessment notice for alleged theft of electricity. Writ C No. 24138 of 2017 had relegated him to object under Section 126(3) of the Electricity Act, 2003 read with clause 6.8(b) of the Electricity Supply Code, 2005. He filed a written objection on 27 July 2017 and reminders in 2018, 2019 and 2021, yet after corporate restructuring and carving out of a new division the objection remained pending before the assessing officer. He sought a writ to compel its decision.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

pending objection to s.126 provisional assessment

HOLDING

On a second writ complaining that an objection to a provisional theft-assessment notice, filed after an earlier order relegating the consumer to Section 126(3) of the Electricity Act, 2003 read with clause 6.8(b) of the Electricity Supply Code, 2005, had remained pending, the Court declined to keep the petition pending or call for a counter-affidavit. It directed the assessing officer, on a fresh representation within two weeks, to disclose all adverse material relied on, receive a detailed objection, fix a hearing and pass a reasoned order strictly in accordance with law. Coercive measures were stayed for two months or until that decision, whichever was earlier; further recovery was to abide the corporation's order. ¶ 1

FLAG quoted 2017 order applied clause 6.8(b) to alleged theft; 8.1–8.2 not addressed

PRINCIPLE TAGS

assessment-6.8-alternate-remedy The Court would not examine the pending s.126 bill on merits and disposed of the writ by sending the consumer back to a fresh 6.8(b)/s.126(3) objection before the assessing officer, to be decided in accordance with law. ¶ 1

6.8-procedure-mandatory The directions required disclosure of adverse material, a further written objection, a dated hearing and a reasoned order before any continued recovery on the provisional theft assessment. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL THEFT ASSESSMENT AND THE 2017 OBJECTION

The Court did not examine the bill or the pending objection; recovery was to abide the assessing officer's decision. ¶ 1

